

**CHAPTER xii**

An Act to make provision in relation to the office of chairman of the court of quarter sessions for the county of Kent.
[24th May, 1962.]

WHEREAS—

(1) It is the intention of the justices of the peace for the county of Kent, on and from the first day of October, nineteen hundred and sixty-two, to discontinue the holding of separate courts of quarter sessions for East Kent and West Kent respectively and to act through one court of quarter sessions to be held for the whole of the county of Kent:

(2) It is expedient to make provision for the appointment of a whole-time salaried chairman for the court of quarter sessions for the county of Kent:

(3) It is expedient to make provision for the payment of superannuation and ancillary benefits in relation to the said appointment:

(4) It is expedient that the other provisions contained in this Act be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This Act may be cited as the Kent Quarter Sessions Act, 1962.

(2) Part VI (County quarter sessions) of the Kent County Council Act, 1958, and this Act may be cited together as the Kent Quarter Sessions Acts, 1958 and 1962.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

“ the chairman ” means the person holding office in pursuance of the provisions of this Act as salaried chairman of the court of quarter sessions for the county;

“ the Council ” means the county council of the administrative county of Kent;

“ the county ” means the administrative county of Kent but does not include any area which has a separate court of quarter sessions;

“ the county fund ” means the county fund of the Council.

(2) Unless the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment including this Act.

As to
chairman of
court of
quarter
sessions for
the county.

3.—(1) On and from the first day of October, nineteen hundred and sixty-two, the offices of chairman of the East Kent Court of Quarter Sessions and chairman of the West Kent Court of Quarter Sessions shall cease and there shall be one office of chairman of the court of quarter sessions for the county.

(2) (a) It shall be lawful for Her Majesty, from time to time when occasion shall require, on the recommendation of the Lord Chancellor made at the instance of the court of quarter sessions for the county to appoint, subject to the provisions of this Act, any person legally qualified as provided by subsection (1) of section 1 of the Administration of Justice (Miscellaneous Provisions) Act, 1938, to be whole-time salaried chairman of the court of quarter sessions for the county so long as that person remains in the commission of the peace for the county:

Provided that, before making any recommendation for an appointment under this section, the Lord Chancellor shall consider any representations which may be made to him with respect thereto by the court of quarter sessions for the county, and shall take into account the expediency of recommending, where practicable, a person residing in, or otherwise connected with, the county of Kent.

(b) The salary to be paid to the chairman shall be of such amount as may from time to time be determined under section 8 of the Criminal Justice Administration Act, 1962, and shall be paid to the chairman by the Council out of the county fund and shall be expenses for special county purposes.

(3) For the purposes of section 2 of the Administration of Justice (Miscellaneous Provisions) Act, 1938, the chairman shall be deemed to be a legally qualified chairman in relation to the court of quarter sessions for the county.

(4) The chairman shall not without the consent of the court of quarter sessions for the county practise as a barrister, or act for any remuneration to himself as arbitrator or referee, or carry on any profession or engage in any employment of such a nature as will, in the opinion of the said court, prevent him from properly performing his duties as chairman.

4.—(1) The chairman shall vacate his office at the end of the completed year of service in the course of which he attains the age of seventy-two years: Retirement or removal of chairman.

Provided that where the Lord Chancellor considers it desirable in the public interest to retain the chairman in office after the chairman attains the said age, he may from time to time authorise the continuance of the chairman in office up to such later age (not exceeding seventy-five years) as he thinks fit.

(2) The chairman may be removed from office by the Lord Chancellor for inability or misbehaviour.

5.—(1) The Council (if they think fit) may undertake to pay to or in respect of the chairman, if either— Superannuation allowance and benefits.

(a) after five years' service his office is vacated in pursuance of subsection (1) of section 4 (Retirement or removal of chairman) of this Act; or

(b) after five years' service he retires and the Council are satisfied by means of a medical certificate that, by reason of infirmity of mind or body, he is incapable of discharging the duties of his office and that the incapacity is likely to be permanent; or

(c) after fifteen years' service he resigns or dies in office and at the time of resignation or death has attained the age of sixty-five years;

a superannuation allowance and benefits, to be ascertained in accordance with a scheme to be prepared by the Council and approved by the Lord Chancellor.

(2) A scheme under this section may be varied or revoked by a subsequent scheme prepared by the Council and approved by the Lord Chancellor.

(3) Any superannuation allowance and benefits which may become payable pursuant to a scheme prepared and approved under this section shall be paid by the Council out of the county fund and shall be expenses for special county purposes.

6. All powers and duties conferred or imposed by this Act shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by Act of Parliament, law or custom, and, subject to any express provision of this Act, all such other powers and duties may be exercised and shall be performed in the same manner as if this Act had not been passed.

7. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of the county fund and shall be expenses for special county purposes.

Table of Statutes referred to in this Act

Short title	Session and chapter
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Administration of Justice (Miscellaneous Provisions) Act, 1938	1 & 2 Geo. 6 c. 63.
Kent County Council Act, 1958	7 Eliz. 2 c. vi.
Criminal Justice Administration Act, 1962	10 & 11 Eliz. 2 c. 15.

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Powers of
Act to be
cumulative.

Costs of Act.

Kent Quarter Sessions Act, 1962

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